



Help, reporting protections and the Workplace Justice visa

Help keep work fair – how to report workplace exploitation

For free advice and education about workplace rights and/or to report employers who are not following workplace laws, visit the Fair Work Ombudsman (FWO) (<https://www.fairwork.gov.au/find-help-for/visa-holders-migrants>). You can report exploitation such as:

- pay and wages
- leave and other entitlements
- discrimination.

Visit [Border Watch](https://www.homeaffairs.gov.au/about-us/what-we-do/borderwatch/reporting) (<https://www.homeaffairs.gov.au/about-us/what-we-do/borderwatch/reporting>) to report people who:

- take migrants' passports
- use a migrant's visa to threaten or force them to work
- force migrants to live in overcrowded and unsafe housing.

You do not need to give your name when you make a report.

Extra protections for temporary sponsored skilled workers

If you are a temporary sponsored skilled worker, your employer must meet their [sponsorship obligations](https://www.abf.gov.au/about-us/what-we-do/sponsor-sanctions/sponsorship-obligations). (<https://www.abf.gov.au/about-us/what-we-do/sponsor-sanctions/sponsorship-obligations>) You can report your employer to [Border Watch](https://www.homeaffairs.gov.au/about-us/what-we-do/borderwatch/reporting) (<https://www.homeaffairs.gov.au/about-us/what-we-do/borderwatch/reporting>) if they:

- force you to work too many hours
- pay you less than the salary agreed when your visa was granted
- take money from your pay for sponsorship, recruitment, or migration agent costs
- make you do a different job from the one approved when your visa was granted.

If you are a temporary migrant worker in Australia and have been treated badly at work, there are people and organisations that can help you.

There are also protections available to migrant workers who worry that reporting exploitation could impact their visa status.

Who to contact for help

Accredited Third Parties (ATPs) are independent organisations that help migrant workers access legal rights and worker related protections, including the Workplace Justice visa and reporting protections. They will always ask for your permission before sharing any information with the Department of Home Affairs or other government departments. Current ATPs are:

- [Australasian Meat Industry Employees' Union \(AMIEU\)](https://amieu.asn.au/) (<https://amieu.asn.au/>)
- [Australian Rail, Tram and Bus Industry Union](https://www.rtbu.org.au/) (<https://www.rtbu.org.au/>)
- [Australian Workers' Union](https://awu.net.au/) (<https://awu.net.au/>)
- [Electrical Trades Union](https://www.etunational.asn.au/) (<https://www.etunational.asn.au/>)
- [Human Rights Law Centre](https://www.hrlc.org.au/) (<https://www.hrlc.org.au/>)
- [Migrant Workers Centre](https://www.migrantworkers.org.au/) (<https://www.migrantworkers.org.au/>)
- [Redfern Legal Centre](https://rlc.org.au/i-need-legal-help/request-legal-advice) (<https://rlc.org.au/i-need-legal-help/request-legal-advice>)
- [SA Unions](https://www.samigrantworkers.org.au/) (<https://www.samigrantworkers.org.au/>)
- [Shop, Distributive and Allied Employees' Association \(SDA\)](https://www.sda.au/) (<https://www.sda.au/>)
- [Professionals Australia](https://www.professionalsaustralia.org.au/) (<https://www.professionalsaustralia.org.au/>)
- [Transport Workers' Union of Australia \(TWU\)](https://www.twu.com.au/) (<https://www.twu.com.au/>)
- [Unions NSW](https://migrants.org.au/) (<https://migrants.org.au/>)
- [Unions Tasmania](https://unionstas.com.au/migrant-work-rights-hub/migrant-workers/) (<https://unionstas.com.au/migrant-work-rights-hub/migrant-workers/>)
- [UnionsACT](https://unionsact.org.au/about) (<https://unionsact.org.au/about>)
- [UnionsWA](https://www.unionswa.com.au/multicultural-workers-collective/) (<https://www.unionswa.com.au/multicultural-workers-collective/>)
- [United Workers Union \(UWU\)](https://unitedworkers.org.au/) (<https://unitedworkers.org.au/>)
- [WestJustice](https://www.westjustice.org.au/legal-help) (<https://www.westjustice.org.au/legal-help>)

The Fair Work Ombudsman

The FWO provides free advice and assistance to all employees. It monitors, investigates and enforces Australia's workplace laws. If you have experienced workplace exploitation and are concerned about your pay and wages, leave and other entitlements, you can [contact the FWO](https://www.fairwork.gov.au/find-help-for/visa-holders-migrants) (<https://www.fairwork.gov.au/find-help-for/visa-holders-migrants>) for help.

Some temporary visa holders worry their employer will cancel their visa if they report exploitation or support an investigation into their employer.

It is important to know that your employer cannot cancel your visa. Only the Australian Government can make decisions about visas.

Help for Pacific Australia Labour Mobility (PALM) workers

If you are a short or long-term PALM scheme worker having problems at work, you can contact the Department of Employment and Workplace Relations (DEWR) PALM support line on 1800 51 51 31 or email palm@dewr.gov.au (<mailto:palm@dewr.gov.au>). You can also contact one of the scheme's [Country Liaison Officers](https://www.palmscheme.gov.au/contact) (CLOs) for help. (<https://www.palmscheme.gov.au/contact>)

Types of migrant worker exploitation

It is against the law in Australia for employers to:

- keep a migrant worker's passport
- threaten to cancel a visa
- threaten to report a worker to immigration authorities

- pressure a migrant worker to work more hours than their visa allows
- threaten future visa applications
- force migrant workers to live in unsafe, dirty or crowded housing as part of their job
- sexually harass a migrant worker
- underpay a migrant worker
- ask a migrant worker to repay sponsorship, nomination, and/or recruitment costs
- ask a migrant worker for money in exchange for visa sponsorship.

If any of these things have happened to you and caused you to break a work-related visa condition, you can report it to Home Affairs without it affecting your visa.

Making a report

Report workplace exploitation as soon as you can. This can help resolve the matter sooner and it may also help prevent others from being exploited.

Remember, protections are available to migrant workers who may worry that reporting exploitation could impact their visa status – see below.

Reporting protections

Reporting protections apply to people who hold temporary visas with work rights, such as:

- Student visa (subclass 500)
- Working Holiday visa (subclass 417)
- Work and Holiday visa (subclass 462)
- Temporary Work (Skilled) visa (subclass 457)
- Temporary Skill Shortage visa (subclass 482)
- Skills in Demand visa (subclass 482)
- Temporary Work (International Relations) visa (subclass 403) including those in the Pacific Australia Labour Mobility (PALM) stream.
- Training visa (subclass 407).

Please note, this is not a complete list of relevant visas.

To seek protection from having your visa cancelled for breaking a work-related visa condition, you need to have your exploitation matter certified.

The Department of Home Affairs will consider your circumstances when deciding what action to take if you break your visa conditions. If workplace exploitation caused you to break a work-related visa condition, your situation will be considered appropriately, as long as:

- the FWO or an ATP has certified the exploitation and is helping you to resolve the matter. See the [How to apply for reporting protections \(#apply\)](#) section of this page.
- you agree to follow visa conditions in the future
- you have experienced workplace exploitation in the last 12 months (or longer in some special circumstances)
- there are no other reasons to cancel your visa (such as fraud, character or security).

You may still be able to access reporting protections if you have broken your visa conditions, including by working while holding a temporary visa that does not allow work. Your case will be considered on its merits.

If you are covered by the reporting protections, breaking your work-related visa conditions may not harm your current or future prospects when applying for a visa.

If you have asked for reporting protection before, or you have broken a different visa condition in the past, you can still apply for reporting protection on another matter. Every situation is looked at on a case-by-case basis.

How to apply for reporting protections

To seek protection from having your visa cancelled for breaking a work-related visa condition, follow these steps:

1. Have your workplace exploitation matter certified

The FWO or one of ATPs listed on this webpage can certify your claim if they are helping you to resolve the matter.

The FWO is participating in the reporting protections program as a certifying government agency. For more information, go to [visa protections – pilot programs \(https://www.fairwork.gov.au/find-help-for/visa-holders-migrants/visa-protections-pilot-programs\)](https://www.fairwork.gov.au/find-help-for/visa-holders-migrants/visa-protections-pilot-programs).

2. Prepare your information

You need to give us information so we can consider your case. Make sure you have the following ready:

- certification of workplace exploitation and the steps you are taking to resolve the matter
- your visa information
- details of any work-related visa breach (if this applies to you).

3. Complete the protection request form

Fill out the [Strengthening Reporting Protection Request Process form \(/visas/working-in-australia/work-rights-and-exploitation/strengthening-reporting-protections-pilot/request-process-form\)](/visas/working-in-australia/work-rights-and-exploitation/strengthening-reporting-protections-pilot/request-process-form).

The form takes about 15 to 30 minutes to complete. Make sure you have enough time to finish and submit the form, because you cannot save it and come back to it later.

Give as much detail as you can and tell us how your breach of the visa condition is connected to your workplace exploitation.

Before submitting the form, make sure your certification of workplace exploitation is attached and all details are correct.

After you submit the form, we will send you an email to let you know we have received your information.

You do not need to do anything else, unless we ask you.

4. Follow your visa conditions and purpose of your visa

The reporting protections are designed to help you report a workplace exploitation issue. It is important that you comply with the conditions and purpose of your visa.

Workplace Justice visa

If you need to stay in Australia longer to pursue your workplace exploitation matter, you can apply for a [Workplace Justice visa](#). ([/visas/getting-a-visa/visa-listing/temporary-activity-408/australian-government-endorsed-events-workplace-justice-pilot](#)) This is a temporary visa that lasts for between 6 to 12 months. To be eligible for this visa, you must:

- be in Australia, but not in immigration clearance
- hold a temporary substantive visa with work rights with no more than 28 days left or have held a temporary substantive visa with work rights that expired within 28 days of your Workplace Justice visa application
- get the FWO or an ATP to certify your workplace exploitation
- have adequate health insurance during your stay in Australia.

Sharing information

When you report workplace exploitation to Border Watch, the information may be shared with other federal, state and/or territory agencies. This helps investigations into exploitation and possibly other illegal actions by your employer.

Shared details might include personal information that you give in your report (including biometric and other sensitive information), as well as details about the workplace and the exploitation.

Read more about this in [Privacy Notice \(Form 1442i\) \(215KB PDF\)](#) ([/form-listing/forms/1442i.pdf](#)).

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